

1 ENGROSSED SENATE
2 BILL NO. 1307

By: Daniels of the Senate

3 and

4 Lepak of the House

5
6 An Act relating to the Oklahoma Historical Society;
7 amending 53 O.S. 2021, Sections 1.18, 171, and 201C,
8 as amended by Section 1, Chapter 213, O.S.L. 2022 (53
9 O.S. Supp. 2025, Section 201C), which relate to the
10 dispensation of funds; removing certain prohibition
11 on use of funds; updating statutory language;
12 updating statutory references; and providing an
13 effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 53 O.S. 2021, Section 1.18, is
16 amended to read as follows:

17 Section 1.18. The Oklahoma Historical Society shall dispense
18 funds for historical purposes only as ~~defined~~ provided by paragraph
19 ~~6 of Section 6 of this act~~ the Oklahoma Historical Preservation Act.

20 The Oklahoma Historical Society may enter into contracts with other
21 state agencies or nonprofit corporations holding a valid exemption
22 from taxation issued pursuant to Section 501(a) of the Internal
23 Revenue Code of 1986, as amended, and listed as an exempt
24 organization in Section 501(c)(3) of the Internal Revenue Code of
1986, ~~of the United States~~, as amended, or with individuals or
associations pursuant to statutory requirements.

1 ~~Funds shall not be applied, donated or used directly or~~
2 ~~indirectly for the use, benefit or support of any sect, church,~~
3 ~~denomination or system of religion, or for the use, benefit or~~
4 ~~support of any priest, preacher, minister, or other religious~~
5 ~~teacher or dignitary, or sectarian institution as such.~~

6 The Oklahoma Historical Society shall provide opportunity to
7 organizations to submit written applications to be received and
8 acted upon by the Oklahoma Historical Society. At the conclusion of
9 the contract, each state agency, nonprofit corporation, individual,
10 or association shall provide the Oklahoma Historical Society with
11 proof of fulfillment of the contract in proper order and ~~must~~ shall
12 be affirmed on the proper form, provided by the Oklahoma Historical
13 Society, by the managing officers of the state agency, nonprofit
14 group, association, or individual making the contract.

15 SECTION 2. AMENDATORY 53 O.S. 2021, Section 171, is
16 amended to read as follows:

17 Section 171. The Oklahoma Arts Council shall dispense funds for
18 arts purposes only. The Oklahoma Arts Council shall enter into
19 contracts with other state agencies or nonprofit corporations
20 holding a valid exemption from taxation issued pursuant to Section
21 501(a) of the Internal Revenue Code, ~~1954~~ of 1986, as amended, and
22 listed as an exempt organization in Section 501(c)(3) of the
23 Internal Revenue Code, ~~1954, of the United States~~ of 1986, as
24 amended. These nonprofit corporations must demonstrate that the

1 goods and services provided meet the intent of the state policy
2 provided in ~~this act~~ Section 162 of this title.

3 ~~Funds shall not be applied, donated or used directly or~~
4 ~~indirectly for the use, benefit or support of any sect, church,~~
5 ~~denomination or system of religion, or for the use, benefit, or~~
6 ~~support of any priest, preacher, minister, or other religious~~
7 ~~teacher or dignitary, or sectarian institution as such.~~

8 The Oklahoma Arts Council shall provide opportunity, by public
9 notices, to all organizations interested in providing these goods
10 and services, who will submit written applications to be received
11 and acted upon by the Oklahoma Arts Council. At the conclusion of
12 the contract, each state agency or nonprofit corporation shall
13 provide the Oklahoma Arts Council with proof of fulfillment of the
14 contract in proper order and ~~must~~ shall be affirmed on the proper
15 form, provided by the Oklahoma Arts Council, by the managing
16 officers of the state agency or nonprofit group making the contract.

17 SECTION 3. AMENDATORY 53 O.S. 2021, Section 201C, as
18 amended by Section 1, Chapter 213, O.S.L. 2022 (53 O.S. Supp. 2025,
19 Section 201C), is amended to read as follows:

20 Section 201C. A. The J.M. Davis Memorial Commission shall have
21 power and authority to:

22 1. Appoint and to fix the salaries and duties of the
23 professional and administrative employees and curators as may be
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1 necessary to carry out the purpose of ~~this act~~ 201A et seq. of this
2 title;

3 2. Appoint an executive director who shall serve at the
4 pleasure of the Commission. A member of the Commission may be
5 appointed as the executive director; provided, if a member of the
6 Commission is so appointed, the member shall resign as a member of
7 the Commission and the vacancy shall be filled in the same manner as
8 are original appointments;

9 3. Provide for the proper housing, protection and display of
10 the J.M. Davis Gun Collection and other historical artifacts; and

11 4. Enter into contracts for services to be performed in
12 furtherance of the authorized activities and duties of the J.M.
13 Davis Memorial Commission with other state agencies or nonprofit
14 corporations holding a valid exemption from taxation issued pursuant
15 to Section 501(a) of the Internal Revenue Code of 1986, as amended,
16 and listed as an exempt organization in Section 501(c)(3) of the
17 Internal Revenue Code of 1986, as amended, or with individuals or
18 associations pursuant to statutory requirements.

19 B. ~~Funds of the J.M. Davis Memorial Commission shall not be~~
20 ~~applied, donated, or used directly or indirectly for the use,~~
21 ~~benefit, or support of any sect, church, denomination, or system of~~
22 ~~religion, or for the use, benefit, or support of any priest,~~
23 ~~preacher, minister, or other religious teacher or dignitary, or~~
24 ~~sectarian institution as such.~~ The J.M. Davis Memorial Commission

1 shall provide opportunity to organizations to submit written
2 applications to be received and acted upon by the J.M. Davis
3 Memorial Commission. At the conclusion of the contract, each state
4 agency, nonprofit corporation, individual, or association shall
5 provide the J.M. Davis Memorial Commission with proof of fulfillment
6 of the contract in proper order and ~~must~~ shall be affirmed on the
7 proper form, provided by the J.M. Davis Memorial Commission, by the
8 managing officers of the state agency, nonprofit group, association,
9 or individual making the contract.

10 C. Any agreements or contracts providing for the employment of
11 persons or to purchase property or equipment or the construction of
12 any facilities shall not be authorized unless necessary funds have
13 been appropriated by the Legislature or have been otherwise obtained
14 from gifts, grants or contributions actually received by the
15 Commission.

16 SECTION 4. This act shall become effective November 1, 2026.
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1 Passed the Senate the 23rd day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives